

26STCV11667 26STCV11667

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Case Number: 26STCV11667 Hearing Date: August 18, 2026 Dept: 14

SUPERIOR COURT OF THE STATE OF
CALIFORNIA, CA

FOR THE COUNTY OF LOS ANGELES

DEPARTMENT 14, CA

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, CA

ANITA YIN and CHRIS GRUENWALD,

Plaintiffs, CA

v.

BLOCK DRUG COMPANY, INC., et al.

Defendants. CA

Case No. 26STCV11667

CA

Hearing Date: August 18, 2026

Time:

9:00 a.m.

¿ [TENTATIVE] ORDER

RE:¿

PLAINTIFFS' MOTION FOR TRIAL PREFERENCE

PURSUANT TO CODE OF CIVIL PROCEDURE SECTION 36

I.

Background

On April 10, 2026, Plaintiffs Anita Yin and Chris Gruenwald (collectively, "Plaintiffs") filed their complaint alleging Ms. Yin developed mesothelioma from exposure to asbestos through asbestos-containing talcum body and foot powders and make-up products. On July 2, 2026, Plaintiffs filed their motion for trial setting preference under Code of Civil Procedure section 36, subdivisions (d) and (e) arguing that Ms. Yin's health is such that there is substantial medical doubt of her survival beyond six months. Alternatively, Plaintiffs contend that the interests of justice will be served by granting trial preference.

On

July 16, 2026, Defendants Estee Lauder Inc., The Estée Lauder Companies Inc., and Clinique Laboratories (collectively, "Estee Lauder") filed a substantive opposition. Estee Lauder argues in opposition that the court has discretion to deny Plaintiffs' request, the Plaintiffs have not carried their burden under section 36, subdivision (d), and the interests of justice do not support preference here because foundational discovery, like Mr. Gruenwald's deposition, remains incomplete. On July 17, 2026, Defendant L'Oréal USA, Inc. filed a joinder to Estee Lauder's opposition.

On

July 22, 2026, Plaintiffs filed a reply, arguing that Defendants erroneously claim Plaintiffs' evidence failed to prove that there is substantial medical doubt as to Ms. Yin's survival past six months, that Ms. Yin's health has deteriorated since the filing of this motions, and that additional issue, like deposition and discovery issues, are irrelevant to a determination under Code of Civil Procedure section 36.

On

July 29, 2026, the court continued the matter to August 18, 2026, because Plaintiffs filed a supplemental declaration on the same day with additional medical information. On August 10, 2026, Plaintiffs filed a supplemental brief and declaration arguing that trial preference should be granted because Ms. Yin's condition has unfortunately deteriorated in the past month. Estee Lauder filed a supplemental opposition on August 13, 2026, arguing that the supplemental filings do not cure the prior identified deficiencies and lack clear and convincing medical documentation indicating substantial doubt that Ms. Yin will not survive beyond six months. Estee Lauder also opposes Plaintiffs' 90-day preference request and maintains the request for conditions should the motion be granted.

The court finds that Plaintiffs presented sufficient evidence to show they are entitled to trial preference under Code of Civil Procedure section 36, subdivisions (d) and (e). However, the court denies Plaintiffs' request to set trial within 90 days. Therefore, Plaintiffs motion for trial preference is granted. Trial is set for Monday, December 7, 2026. The Final Status conference is set for Monday, November 16, 2026. A status conference for the proposed trial setting order is set for Friday August 28, 2026.

II.

Discussion

A.

Legal Standard

The court has discretion to grant a motion for trial preference accompanied by clear and convincing medical documentation concluding that one of the parties suffers from an illness or condition raising substantial medical doubt of survival of that party beyond six months and satisfying the court that the interests of justice will be served by granting the preference. (Code Civ. Proc., § 36, subd. (d).) The court may also grant a motion for preference in its discretion if it is supported by a showing that satisfies the court that the interests of justice will be served by granting the preference. (Id., § 36, subd. (e).)

"Upon the granting of such a motion for preference, the court shall set the matter for trial not more than 120 days from that date and there shall be no continuance beyond 120 days from the granting of the motion for preference

except for physical disability of a party or a party's attorney, or upon a showing of good cause stated in the record." (Id., § 36, subd.

(f).) "Any continuance shall be for no more than 15 days and no more than one continuance for physical disability may be granted to any party." (Ibid.)

B.

Analysis

Plaintiff

Anita Yin is 51 years old; in September 2020 she was diagnosed with malignant peritoneal mesothelioma. (Spier Decl., at ¶ 4; Soto Decl., at ¶¶ 2-3.) Since September 2020, Ms. Yin has undergone a plethora of treatments, including chemotherapy with cisplatin and pemetrexed, cytoreductive surgery with hyperthermic intraperitoneal chemotherapy (Feb. 16, 2021), a video-assisted thoracoscopic surgery (July 30, 2021), immunotherapy with ipilimumab and nivolumab, gemcitabine, and enrollment in a CAR-T cell infusion clinical trial (April 29, 2025). (Soto Decl., at ¶¶ 9-10.) Since her diagnosis, Ms. Yin's counsel witnessed Ms. Yin suffer from symptoms of her illness, including chronic abdominal pain, weight loss, GI issues, physical and mental fatigue, and declining mobility. (Id., at ¶ 11.) Ms. Yin's cancer has continued to progress and due to her current treatments so has her declining outlook on life. (Id., at ¶ 12 ["According to her own testimony, her pain is 'anywhere from [an] eight to ten'...[and] it is 'really hard to get out of bed sometimes'."].) Plaintiffs' counsel opines that Ms. Yin may die suddenly from her disease, infections, and/or unexpected complications and that she will not be able to participate in trial if preference is not granted. (Id., at ¶ 14.)

Ms.

Yin's medical records document her pathology and diagnosis report. (Soto Decl., Exh. A.) The records show that in September 2020, Ms. Yin suffered from a "relatively scanty proliferation of epithelial-type mesothelial cells...in a myxoid matrix" and that the "H&E morphology by itself is strongly suspicious for a mesothelioma." (Id., at p. 2.) Records prior to September 2020 indicate negative pap smears and lack of malignant cells. (Id.) The most recent record in the exhibit is from September 2021, indicating Ms. Yin had a shave biopsy for a right plantar wart. (Id., at p. 1.) The court notes that Plaintiffs directed the court to access additional medical records through two ShareFile links. Plaintiffs were required to file relevant records supporting their trial preference motion together with the other supporting papers. Instead, the ShareFile links are to 21 documents totaling more than 8000 pages. Such an

undifferentiated document dump ill serves Plaintiffs' motion and is an unwarranted imposition on the court. "It is [the parties'] duty to direct the court to evidence that supports their claims. It is not the court's duty to rummage through the papers to construct ... their case." (Collins v. Hertz Corp. (2006) 144 Cal.App.4th 64, 75.)

Ms.

Yin testified in deposition that in the last year her cancer progressed and that she had been undergoing chemotherapy and clinical trials. (Soto Decl., Exh. C at 12:21:11-12:21:23.) Ms. Yin had applied to about five clinical trials, taking her all over the United States. (Id., at 12:22:1-12:22:15.) The plan was for Ms. Yin to restart her chemotherapy the day after her deposition. (Id., 12:23:19-12:23:23.) As to her pain, Ms. Yin states that it can be "anywhere from eight to ten" even with a high pain tolerance, and it has been an "ongoing" and "consistent" issue since 2020. (Id., at 12:25:1-12:25:17.) Ms. Yin also suffers from daily fatigue and loss of appetite due to the cancer. (Id., at 12:26:1-12:27:24.) As to her activity level, Ms. Yin states that prior to her diagnosis, she was active and enjoyed "lots of outdoor stuff" like hiking, camping, and walking her dogs; now, she "just can't do that anymore" due to the fatigue, discomfort, and lack of appetite. (Id., at 12:29:17-12:30:1, 12:38:10-12:38:23.)

Dr.

Laurence Spier, a Cardiothoracic surgeon who is not Ms. Yin's physician but has reviewed her medical records, declares that he spoke to Ms. Yin on June 19, 2026. (Spier Decl., at ¶ 8.) Dr. Spier states that he was able to glean from their conversation that Ms. Yin "is suffering from chronic pain due to the abdominal mesothelioma." (Ibid.) Ms. Yin's latest CT scan also shows that her cancer has progressed further and that her oncologists are developing a new treatment plan to be published in the coming weeks. (Ibid.) Dr. Spier declares that "given [Ms. Yin's] incurable malignancy, no durable improvement in her health can reasonably be expected (Id., at ¶ 9.) Additionally, Dr. Spier opines on the likelihood that Ms. Yin's condition is likely to continue deteriorating:

"My medical

opinion is, due to Mrs. Yin's mesothelioma and the continued progression of her disease, her ability to participate in a deposition and trial is already impaired and will continually decline further as time passes. As Mrs. Yin's mesothelioma progresses as it has already done and undoubtedly will continue to

do, she is at risk of it spreading to her other organs. Mrs. Yin is already suffering increasing pain, fatigue, digestive issues, and weakness from her mesothelioma and is at high risk of rapid decline from infection or cancer progression.

Drawing upon my professional training, clinical experience, and direct review of Mrs. Yin's medical records and disease progression, I can state with medical certainty that her condition will continue to deteriorate. Mrs. Yin is expected to suffer from escalating symptoms including pain, breathlessness, fatigue, physical weakness, and continued unintended weight loss. Despite ongoing treatment, her disease remains aggressive, incurable, and continuously progressing, placing her at persistent and significant risk for rapidly emerging infections and other serious complications. These health challenges will further compromise her energy, cognitive clarity, and ability to communicate effectively. As a result, her capacity to participate in legal proceedings—such as deposition and trial—will steadily decline. The longer her participation is delayed, the less likely it becomes that she will be able to contribute meaningfully, until ultimately, she may be unable to participate at all. Mrs. Yin's illness is terminal, and her outlook is poor.”

(Id.,

at ¶¶

10-11.) Dr. Spier concludes that there is “substantial medical uncertainty regarding Mrs. Yin's survival beyond six months from the date of this declaration.” (Id., at ¶ 12.)

In opposition, Estee Lauder argues

that Plaintiffs have not presented clear and convincing medical documentation raising substantial doubt of Ms. Yin's survival beyond six months as required under Code of Civil Procedure section 36, subdivision (d). Estee Lauder notes that Dr. Spier is not Ms. Yin's personal oncologist and provided opinions based on a phone call and looking at Ms. Yin's medical records. (Opp., at p. 4.)

Estee Lauder acknowledges that the declarations describe “significant medical hardship,” but the evidence, specifically Dr. Spier's declaration, “does not identify the objective prognostic markers, clinical criteria, or individualized methodology by which he reached that conclusion” and does not state that Ms.

Yin is in hospice or palliative-only care, that her current treatment options have failed, or that her treating oncologists have concluded she is within a six-month survival window.” (Opp., at p. 5.) Estee Lauder also contends that Plaintiffs'

argument that Defendant have a financial incentive to delay this trial is unsupported and irrelevant to this issue here. (Ibid.)

Estee

Lauder also argues that the interests of justice will not be served if trial preference is granted because Defendants' due process rights will be impaired. Specifically, Estee Lauder argues that they will have no opportunity to file dispositive motions, to complete a substantial amount of discovery, and to reasonably investigate factual questions regarding work loss, product usage, and alternate/potential sources of Ms. Yin's exposure, especially since Mr. Gruenwald's deposition has not yet been taken. (Opp., at pp. 6-9.)

In

reply, Plaintiffs maintain that their evidence proves that there is substantial medical doubt as to Ms. Yin's survival beyond six months. Plaintiffs also contend that Ms. Yin's health has deteriorated since the filing of this motion: on July 17, 2026, Ms. Yin was admitted to the hospital due to sepsis concerns. (Reply at p. 5; Gruenwald Decl., Exh. A.) Although sepsis was ruled out, Ms. Yin was asked to return to the hospital the following day due to a bacterial infection, where she remains presently and has had her next chemotherapy session postponed. (Ibid.) Mr. Gruenwald states that Ms. Yin "is currently stable," but her health "has continued to decline in the weeks since" this motions filing. (Gruenwald Decl., ¶¶ 5-6.) Plaintiffs further argue in reply that additional issues, like deposition and discovery issues, are irrelevant to a determination under Code of Civil Procedure section 36.

On

August 10, 2026, Plaintiffs filed supplemental evidence indicating that Ms. Yin's health has further deteriorated since the filing of this motion. Included in the evidence is Dr. Lyudmila A. Bazhenova's declaration, who is Ms. Yin's current primary oncologist.^[1] (Bazhenova Decl., ¶ 3.) Dr. Bazhenova states that Ms. Yin's most recent chemotherapy and radiation treatments, which are palliative, were administered on July 4 & 14, 2026. (Id., ¶ 6 ["Ms. Yin's cancer cannot be cured."].) Ms. Yin was admitted to the hospital on July 19, 2026, due to abdominal pain, fever, nausea, and diarrhea, and remained hospitalized for a few weeks. (Id., ¶ 7, Exh. C at p. 2.) The hospital determined that Ms. Yin suffered from "severe malnutrition" compounded by her GI issues and lack of appetite. (Id., ¶ 8, Exh. C at p. 8.) A CT scan of Ms. Yin's abdomen and

pelvis also found that “[m]ultiple hepatic metastases...[s]cattered nodal metastases...[and] [l]eft basal pleural and pulmonary nodules” were larger than the prior scan. (Id., Exh. C at p. 4.) During her admission, Ms. Yin underwent a colonoscopy, which found that her cancer had spread into the sigmoid colon. (Id., ¶ 9, Exh. C at p. 11.) Ms. Yin’s oncologists stated in the procedural note on July 31, 2026, that chemotherapy would likely be discontinued because Ms. Yin’s “poor performance” made it unlikely that chemo “would have [an] acutely positive affect.” (Id., ¶ 10, Exh. C at p. 24.) Hospice care has been discussed due to the progression. (Id., ¶ 11.) Dr. Bazhenova opines that, “with medical certainty,” Ms. Yin’s “condition will continue to deteriorate” and “her capacity to participate in legal proceedings, including trial, will rapidly decline.” (Id., ¶ 14.) Dr. Bazhenova concludes that “there is substantial medical uncertainty regarding Ms. Yin’s survival beyond two months – and even greater uncertainty of her survival beyond six months – from the date of this declaration.” (Id., ¶ 15.)

On

August 13, 2026, Estee Lauder filed a supplemental opposition. Estee Lauder argues that Plaintiffs’ supplemental filings do not cure this court’s previously identified deficiencies and do not present clear and convincing evidence establishing substantial medical doubt of Ms. Yin’s survival beyond six months. (Supp. Opp., at pp. 3-5 [“the declaration does not identify

the objective prognostic markers, clinical criteria, survival model, performance-status analysis, or individualized methodology by which that two-month or six-month window was reached.”].) Estee Lauder specifically argues that the supplemental records contradict Dr. Bazhenova’s declaration because the records: (1) state Plaintiffs “wanted to ‘exhaust all options’;” (2) show the bacteremia was treated; (3) “support symptom management and careful monitoring; they do not supply the missing clear and convincing prognosis;” and (4) show “uncertainty” as to Ms. Yin’s survival timeline. (Ibid.) Estee Lauder also argues that Plaintiff’s request in the supplemental brief to set trial within 90 days is not justified and increases prejudice. (Id., at p. 6.) Should the court grant Plaintiffs’ motion, Estee Lauder requests the conditions previously stated in opposition. (Id., at p. 7.)

Plaintiffs’

supplemental evidence entitle them to trial preference under Code of Civil

Procedure section 36, subdivision (d). The supplemental evidence shows that Ms. Yin's health is unfortunately worsening. Since the motion's filing, Ms. Yin was hospitalized for over two weeks due to complications from her mesothelioma, including abdominal pain, fever, nausea, and diarrhea. Ms. Yin has become severely malnourished. Her cancer has spread to her sigmoid colon. Her previous masses have grown since her last scan. Per her doctors' notes, Ms. Yin's chemotherapy will likely be discontinued due to the low likelihood of success. Hospice care has been discussed with Ms. Yin and her family. Thus, clear and convincing evidence shows that Ms. Yin's health is such that there is substantial medical doubt that she will survive beyond six months of the hearing date. Estee Lauder did not present any countervailing evidence to rebut Plaintiffs' evidence. Therefore, the motion for trial preference is granted under Code of Civil Procedure section 36, subdivision (d).

As to the balance of the equities, while the court recognizes Defendants' interests in ensuring they have sufficient time to prepare their defenses, Ms. Yin has an even more significant interest in proceeding to trial while she is alive and able to participate. The Legislature has emphatically struck the balance in favor of the party who qualifies for trial preference. (*Pabla v. Superior Court* (2023) 90 Cal.App.5th 599, 604.) However, Plaintiffs fail to present sufficient evidence to show that trial should be set on an even more abbreviated schedule within 90 days. Therefore, the court finds Plaintiffs present sufficient evidence to show that a trial setting order for within 120 days satisfies the interests of justice.

Estee Lauder's opposition also requests that the court impose certain conditions as part of the trial setting order including, but not limited to, shortening the motion for summary judgment and/or adjudication notice period, ordering Plaintiffs to provide information regarding identification witnesses, and stipulations regarding expert discovery. Absent the parties' stipulation, the court lacks authority to reduce the notice period for summary judgment motions. (*McMahon v. Superior Court* (2003) 106 Cal.App.4th 112, 116.) Estee Lauder cites no authority for the proposition that the court can impose such conditions upon the parties as part of an order granting trial setting preference. The court expects the parties to meet and confer regarding the appropriate conditions for a proposed trial setting order. If there are disputes as to the appropriate conditions, the court will rule on

these disputes at the status conference regarding the trial setting order.

III.

Conclusion

Plaintiffs' motion for trial preference is granted. The parties are to meet and confer regarding appropriate conditions for a trial setting order. The court sets trial for Monday, December 7, 2026, at 9:00 A.M. The Final Status conference is set for Monday, November 16, 2026, at 9:00 A.M. A status conference for the proposed trial setting order is set for Friday August 28, 2026, at 9:00 A.M.

Plaintiffs are ordered to give notice.

[1] The court notes that Dr. Bazhenova directed the court to access additional medical records through a ShareFile link. (Bazhenova Decl., Exh. B.) Plaintiffs were required to file relevant records supporting their trial preference motion together with the other supporting papers. Instead, the ShareFile link is to 8 documents totaling more than 4000 pages. Such an undifferentiated document dump ill serves Plaintiffs' motion and is an unwarranted imposition on the court. "It is [the parties'] duty to direct the court to evidence that supports their claims. It is not the court's duty to rummage through the papers to construct ... their case." (Collins v. Hertz Corp. (2006) 144 Cal.App.4th 64, 75.)